

Plaintiffs fail to identify a statutory basis for the claims of negligent supervision, training, and retention and negligent entrustment. The Complaint identifies Government Code sections 815.2 and 820 as the statutory bases for the claims. These provisions respectively provide that public employees are liable for their acts and omissions to the same extent as private persons, and that a public entity employer may be held vicariously liable for those acts and omissions.

The opposition relies on the “special relationship” doctrine to claim that there is a special relationship between the City and other motorists. However, “... there can be no individual liability to third parties for negligent hiring, retention or supervision of a fellow employee, and hence no vicarious liability under [Government Code] section 815.2” absent a special relationship (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 877.) Plaintiffs identify no authority holding that a special relationship exists in the circumstances in which plaintiffs were injured. The demurrer should be sustained with leave to amend. Plaintiffs need to specifically identify the statutory basis for each separate cause of action pled in the amended complaint.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/04/26
(Judge's initials) (Date)

(34)

Tentative Ruling

Re: ***Bedrosian v. Saint Agnes Medical Center***
Superior Court Case No. 24CECG05453

Hearing Date: June 9, 2026 (Dept. 502)

Motion: by Plaintiffs for Preference

Tentative Ruling:

To deny. (Code Civ. Proc., § 36, subd. (e).)

Explanation:

Plaintiffs move for an order for preferential trial setting pursuant to Code of Civil Procedure section 36, subdivision (e), allowing for a preferential trial setting where a showing is made that the interests of justice will be served. The trial in this matter is currently set to begin on September 7, 2027.

The decision to grant or deny a preferential trial setting under subdivision (e) “rests at all times in the sound discretion of the trial court in light of the totality of the circumstances.” (*Salas v. Sears, Roebuck & Co.* (1986) 42 Cal.3d 342, 344.)

Having reviewed the moving papers and parties' arguments, the court finds there is no basis for preferential trial setting. Accordingly, the motion is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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